

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 21, 2026 TIME: 8:30 A.M.

No. 22CV02635

WILCOX v. MADURA

**(UNOPPOSED) DEFENDANTS' MOTION TO COMPEL RESPONSES TO
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE; FORM
INTERROGATORIES, SET ONE; SPECIAL INTERROGATORIES, SET ONE;
TO ADMIT MATTERS SPECIFIED IN REQUEST FOR ADMISSIONS, SET
ONE; AND FOR TERMINATING AND MONETARY SANCTIONS**

The unopposed motion is granted, as discussed below.

This action is a business dispute between partners in two limited liability companies. Plaintiff Steven Wilcox brought this action for dissolution, damages, and accounting against defendants Karen Madura, Santa Cruz Taverns, LLC, and Seabright Taverns, LLC. Madura holds a 50% interest in Santa Cruz Taverns LLC and plaintiff holds the remaining 25% interest. Plaintiff and Madura each hold a 50% membership interest in Seabright Taverns, LLC.

On April 2, 2026, counsel for defendants served form and special interrogatories, set one; request for production of documents, set one; and request for admissions set one, on plaintiff through his counsel. (Decl. of Nelson at ¶3, Ex. B.) The due date came and went without responses. Counsel for defendants called and emailed plaintiff's counsel multiple times regarding the overdue discovery without receiving responses, necessitating this motion to compel. (Decl. of Nelson at ¶¶ 4-5.)

"If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. [Citation.]" (Weil & Brown *Civil Proc. Before Trial* (TRG 2026) §8:137.) Further, "[a]ll that need be shown in the moving papers is that a set of interrogatories was properly served on opposing party, that the time to respond has expired, and that no responses of any kind has been served." (Weil & Brown *Civ. Pro. Before Trial* (TRG 2026) §8:1140; Code Civ. Pro. § 2030.290, subd. (b).) "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2030.290, subd. (c).)

"Where there has been no timely response to a CCP §2031.010 demand, the first thing the demanding party must do is to seek an ordering compelling a response. [CCP §2031.300]." (Weil Brown *Civil Procedure Before Trial* (TRG 2026) § 8:1483.) Failure to respond timely waives all objections. "If a motion to compel responses is filed and a party properly asks for

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monetary sanctions, the court ‘shall’ impose a monetary sanction against the losing party *unless* it finds that party made or opposed the motion ‘with substantial justification’ or other reasons make the sanction ‘unjust.’” (Weil & Brown *Civ. Pro. Before Trial* (TRG 2026) § 8:1488.)

If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2023.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Therefore, the matters specified in requests for admission, set one (Exhibit A to Decl. of Nelson) are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless plaintiff serves, before the hearing on the motion, a proposed response to the requests for admission that are in substantial compliance with Code of Civil Procedure section 2033.220. Additionally, plaintiff is ordered to serve verified, code-compliant responses, without objections, to the remaining discovery requests attached as Exhibit A to the declaration of Nelson [special and form interrogatories, set one and requests for production of documents, set one]. Those responses are to be served within 20 days from the date of this hearing.

Defendants request sanctions in the amount of \$7,125.00, jointly against plaintiff and his counsel. Defendants’ counsel states that he spent 15.7 hours preparing the motion at a rate of \$450.00/hour (\$7,065.00) plus they seek \$60.00 in filing fees. Failure to respond to discovery requests without substantial justification is a misuse of the discovery process. (Code Civ. Proc. § 2023.010, subd. (d).) This motion is relatively simple and is unopposed, so there is no reply to prepare; the Court finds the request for 15.7 hours of time to be excessive. The Court awards 5 hours of time or \$2,250.00 jointly against plaintiff and his counsel. “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) These sanctions are to be paid within 30 days from the date of this hearing.